

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: September 12, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER ON FOURTH JOINT MOTION FOR EXTENSION OF TIME

On August 21, 2025, the parties submitted a Joint Status Report (“JSR”), as required by the previous order modifying the schedule that issued on July 8, 2025, and as further discussed in the Memorandum Order that issued on August 13, 2025. The Memorandum Order stated that document production was extended until August 28, 2025, and that I would consider extending it further, to September 15, 2025, after receipt of the August 21, 2025, JSR. The Memorandum Order required that the JSR detail the pages produced by the parties, whether all custodians had transferred documents for review, the status of gathering and processing the documents, and how many more pages the parties anticipated producing. Memorandum Order at 2. The Memorandum Order further stated that “[t]he parties are not required to file any further motion regarding the enlargement of time to produce documents unless they wish to move for the enlargement or addition of other due dates to the schedule.” *Id.* On September 9, 2025, the parties filed a joint motion seeking an extension of time to complete discovery and proposing a briefing schedule.

As good cause for extending not only the completion of document production, but also other benchmarks including the completion of discovery, the parties state that Complainant has completed production, but Respondent needs an additional 8 weeks because there is no centralization of its electronically stored information, and it must coordinate between many departments in three different countries. Joint Motion at 2. In addition, Respondent has “collected but not yet reviewed...approximately 1.3 terabytes—a massive volume of data” that

must be reviewed for privilege and responsiveness before it can produced. As of the date of the joint motion, Complainant has provided over 2,000,000 pages of documents, and Respondent has provided 199,000. Complainant contends that it would be severely prejudiced if Respondent is not given more time to complete document production ahead of depositions. In an attempt to address the potential further prejudice created by Respondent having access to Complainant's complete production while Complainant does not have Respondent's, the parties agreed not to begin review of documents produced by the other party until both have completed production.

Based on the below, the parties' joint motion to extend the schedule is **GRANTED IN PART** and **DENIED IN PART**. The proposed September 15, 2025, joint status report is moved to September 19, 2025, a second joint status report has been added, and the proposed briefing schedule is not adopted.

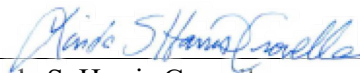
The number of records produced as of August 28, 2025, is voluminous, but also disparate. To address this disparity, the parties agreed to not review the other party's records until each has fully completed production. This agreement to postpone review of records could lead to substantially more delay in this proceeding, particularly if Respondent does not substantially complete production until October 17, 2025, the last date to do so and the start of deposition notices. While the parties may agree between themselves to start their review of a million or more pages of records simultaneous with starting depositions, fact depositions will not be extended beyond December 12, 2025. A self-imposed hold of another month will not be good cause for any further extensions and is not consistent with my order for the rolling production of documents, which should be considered to include review of the records as they are received. Memorandum Order at 2.

Good cause having been found, the motion to extend the discovery schedule is **GRANTED AS MODIFIED**. The proposed briefing schedule is premature and is **DENIED**. The schedule is modified as follows:

September 19, 2025	Joint Status Report—Trial Counsel Availability
October 17, 2025	Document Production Completed, Fact Depositions May be Noticed
November 17, 2025	Joint Status Report
December 12, 2025	Complete Fact Depositions; Expert Depositions Begin
January 9, 2026	Discovery Completed
February 9, 2026	Prehearing Conference (tentative)

In the July 8, 2025, Order Granting Joint Motion to Modify Schedule, I noted that both parties had requested an oral hearing, and I provided information regarding how a prehearing conference will be conducted prior to setting a hearing date. I instructed the parties to include in their next joint status report—which was the August 21, 2025, report—the identify of their trial

counsel and that individual's availability through the end of 2025. Rather than doing so, the parties instead proposed briefing dates. Because this order extends discovery, a prehearing conference will not occur until 2026, and the parties are now required to identify their trial counsel, and the individual's availability through March 31, 2026, in the September 19, 2025, joint status report. Because of the substantial number of shipments at issue in this proceeding, and the volume of records related to those shipments, an oral hearing will likely be the most efficient way to present evidence absent the narrowing of issues and use of stipulations of fact and evidence. The parties will be required to meet and exchange exhibits prior to the prehearing conference, so it is in their best interests to identify facts and evidence on which they can agree as discovery progresses.



Linda S. Harris Crovella
Administrative Law Judge